

26VECV00952 26VECV00952

County: los-angeles

Division: Civil Law and Motion

Department: 107

Hearing date: 2026-06-26

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Case Number: 26VECV00952 Hearing Date: June 26, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Michael

Scruton,

Plaintiff,

v.

Ford

Motor Company

Defendant.

Case Number Department

26VECV00952 107

COURT'S [TENTATIVE]

ORDER RE:

Motion

for Protective Order

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Grant, in part, and deny, in part.

I.

BACKGROUND

On April 8, 2023, Plaintiff Michael Scruton ("Plaintiff") acquired a certified pre-owned 2021 Ford Ecosport (the "Vehicle"). (Complaint ¶ 6.) The Vehicle was defective. (Complaint ¶ 11.)

On February 17, 2026, Plaintiff filed a complaint against Defendants Ford Motor Company ("Defendant") and Does 1 through 20, alleging causes of action for: (1) breach of express warranty under the Song-Beverly Consumer Warranty Act; (2) breach of implied warranty under the Song-Beverly Consumer Warranty Act; and (3) violation of the Song-Beverly Act section 1793.2, subdivision (b).

On May 15, 2026, Defendant filed a motion for entry of protective order to govern production of confidential materials (the "Motion"). On June 12, 2026, Plaintiff filed an opposition. On June 18, 2026, Defendant filed a reply.

II.

MEET

AND CONFER

A motion for a protective order must be accompanied by a meet and confer declaration. (Code Civ. Proc., § 2031.060, subd. (a).) "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040, subd. (a).)

Defendant's

counsel submits a declaration stating they emailed Plaintiff's counsel. (Villanueva Declaration ¶¶ 3-7.) Defendant was required to meet and confer in person, by telephone, or by videoconference. Meeting and conferring by email is

insufficient under Code of Civil Procedure section 2016.040. Defendant did not satisfy the meet and confer requirement.

III.

LEGAL

STANDARD

“The court, for good cause shown, may make any order that justice requires to protect any party or other person from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to . . . [T]hat a trade secret or other confidential research, development, or commercial information not be disclosed, or be disclosed only to specified persons or only in a specified way.” (Code Civ. Proc., § 2031.060, subd. (b).)

“[T]he burden is on the party seeking the protective order to show good cause for whatever order is sought.” (Fairmont Ins. Co. v. Superior Court (“Fairmont”) (2000) 22 Cal.4th 245, 255.)

IV.

DISCUSSION

Defendant seeks the entry of a protective order applicable to Defendant’s initial disclosures of materials pursuant to Code of Civil Procedure section 871.26 to protect Defendant’s confidential, proprietary, and trade secret information and materials. (Motion p. 2.)

In opposition, Plaintiff argues Defendant has not shown good cause because Amanda Pannell’s declaration is conclusory and fails to show these documents contain trade secrets. (Opposition p. 4.) Plaintiff also notes Defendant responded indicating the Written Statement of Lemon Law Policies and Procedures will only be produced subject to a protective order, but Defendant’s Motion does not reference this document. (Opposition pp. 5-6.) Finally, Plaintiff argues the information Defendant is seeking to protect is within the disclosure requirements of Code of Civil Procedure section 871.26, subdivision (h), and Defendant voluntarily opted into this statutory framework. (Opposition p. 7.) Plaintiff argues that “[a]llowing [Defendant] to withhold these documents acts as a unilateral stay of discovery, violating the express text and intent of the statute.” (Opposition p. 7.)

In reply, Defendant

argues Code of Civil Procedure section 871.26 does not eliminate the court's authority to impose a protective order. (Reply p. 2.) Defendant also argues it has shown good cause for a protective order because the Warranty Policy & Procedure Manuals and Workshop Manual are proprietary. (Reply p. 3.) Finally, Defendant argues Plaintiff has shown no prejudice they will suffer if the court enters a protective order. (Reply p. 4.)

Defendant submits a

declaration by Amanda Pannell, Defendant's California RAV Escalation Manager operations. (Pannell Declaration ¶ 2.) Pannell discusses two documents: (1) Defendant's Warranty Policy & Procedure Manuals; and (2) Defendant's Workshop Manual. (Pannell Declaration ¶ 6.) Pannell does not discuss the document referenced by Plaintiff, Defendant's Written Statement of Lemon Law Policies and Procedures. (Opposition pp. 5-6.) The court here considers only if a protective order should be entered in reference to the Warranty Policy & Procedure Manuals and Workshop Manual. (Pannell Declaration ¶ 6.)

"'Gaps left unaddressed by statutes' – that is, legislative silence – are still gaps, and may be filled by courts through the exercise of their inherent authority in the absence of a clear legislative intent to the contrary that goes beyond the silence itself." (Chavez v. Superior Court (2024) 99 Cal.App.5th 165, 180.)

The court acknowledges Plaintiff's concern here that permitting Defendant to move for the entry of a protective order acts as a stay of the initial disclosures under Code of Civil Procedure section 871.26. But Code of Civil Procedure section 871.26 does not clearly indicate the Legislature intended to remove the court's ability to enter a protective order covering materials responsive to the documents set forth in Code of Civil Procedure section 871.26. Thus, the court is not persuaded it lacks authority to enter a protective order here.

The court finds good cause exists to enter a protective order relating to the Warranty Policy and Procedure Manual. Pannell sets forth that the Warranty Policy and Procedure Manual contains confidential proprietary information relating to Defendant's warranty and recall processes and procedures. (Pannell Declaration ¶ 9.) Pannell states that "[t]hese practices and procedures were developed over time and with significant cost and

investment by [Defendant]. These documents are unique to [Defendant] and would have value to [Defendant's] competitors if made public, because they would allow [Defendant's] competitors to replicate [Defendant's] warranty policies and procedures." (Pannell Declaration ¶ 9.)

The court finds no good cause exists to enter a protective order relating to the Workshop Manual. Pannell states the Workshop Manual is offered for a fee. (Pannell Declaration ¶ 10.) Defendant's concern here appears to be that producing the Workshop Manual may result in lost revenue. (Pannell Declaration ¶ 10.) The court disagrees that Defendant's concern for loss of revenue transforms the Workshop Manual into a confidential document.

Finally,

Defendant requests the court enter a "[m]odified" protective order. (Motion p. 4.) Defendant bears the burden of showing good cause for the proposed protective order. (Fairmont, supra, 22 Cal.4th at p. 255.) The court finds no good cause exists to enter the requested modified protective order and directs entry only of the Los Angeles Superior Court model protective order.

V.

CONCLUSION

For the foregoing reasons, the Motion is granted, in part, and denied, in part. The court grants the Motion as it relates to the Warranty Policy and Procedure Manual but denies it as it relates to the Workshop Manual. The court denies Defendant's request for a modified protective order but will enter the Los Angeles Superior Court model protective order.

Dated: June 26, 2026 _____ Hon.

Eric Harmon

Judge of the Superior Court